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issue involves two questions:

► Who gets to decide what the right answer to a substantive constitutional question is?

► Does the Constitution give the political branch the final power to interpret itself?

These two questions expose the heart of the problem namely: how do we reconcile the notion of parliamentary sovereignty—that Parliament has the last word on determining the meaning of the Constitution—with judicial review. India's Supreme Court enshrined judicial review by creating a basic structure doctrine in *Keshavananda Bharati vs State of Kerala* (1973) when it said that Parliament cannot alter the basic structure or framework of the Constitution, a structure that was undefined but knowable only by the court. The court, in legal scholar S.P. Sathe's words, exercised "maximum restraint" in using the basic structure doctrine against constitutional amendments and was "reticent" in striking down an amendment.

The increasingly blurred nature of the "political" in recent years has coincided with the rise of political competition and fractured legislatures on the one hand, and the propensity of the judiciary to appropriate more powers for itself on the other. Since 1989, India has seen a series of coalition and minority governments. Political parties have to increase the basis of their appeal and are, therefore, reluctant to take difficult decisions that may alienate one set of voters. In the past decade, political parties and the Government have used higher court rulings to justify controversial measures. For instance, the Delhi

Tricky issue: The Amarnath Yatra judgment helped political parties stoke popular passions

Decisive Judgments

POLITICAL PARTIES AND THE GOVERNMENT HAVE USED SEVERAL COURT RULINGS TO JUSTIFY CONTROVERSIAL MEASURES. IN 1996, BJP USED A SUPREME COURT DECISION TO SUPPORT ITS IDEOLOGY OF HINDUTVA.

Government blamed the court for forcing it to demolish illegal commercial structures. In 1996, the BJP used a Supreme Court judgment to justify its ideology of Hindutva. The Amarnath Yatra judgment of 2005 by a high court formed the frame within which political parties stoked popular passions resulting in many deaths and the impoverishment of many families. This is inimical to the judiciary's position as an impartial arbiter between the Government and the citizen, while the increase in the caseload bodes ill for the legitimacy of the court. The Supreme Court's docket had 2,614 cases in 1951 (67 per cent disposal rate) and 80,691 cases in 2005 (57 per cent disposal rate). Over 24 million cases are languishing in the high courts.

Those in favour of the court's involvement argue that political controversies are transformed into legal battles over constitutional provisions, thus, reducing violence and moving the issue into an arena conducive to achieving a compromise. Others argue, and rightly so, that the judiciary is neither capable of judging these issues nor do the judgements necessarily bring down the tensions. Instead, the courts have become political decision-making bodies, and judgements are being misused by political parties for electoral ends.

The judiciary has to be careful about the bounds of its jurisdiction. Perhaps, what it can do is to follow some criteria prescribed by the American public law theorist, Jesse H. Choper.

► Don't decide issues where the Constitution is clear about referring the resolution of that issue to the elected branches.

► Decline to exercise interpretive authority in those issues where judicial review is thought to be unnecessary to preserve the constitutional scheme.

► Don't decide issues where the court cannot devise principled coherent tests.

Philippa Strum in *The Supreme Court and the "Political Question": A Study in Judicial Evasion* argues that the US Supreme Court characterises those questions as political, where its rulings are not likely to be implemented by the executive, and societal consensus, if enforced, would negate an existing or emerging American truth. By this yardstick, the Indian judiciary would be well advised not to get involved in a number of cases mentioned above which have neither political will nor societal consensus.

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